

STATE OF NEW YORK

1865--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 14, 2025

Introduced by M. of A. ROSENTHAL, BURDICK, EPSTEIN, SEAWRIGHT -- read once and referred to the Committee on Housing -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the real property law, in relation to the installation of appliances or fixtures by tenants

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The real property law is amended by adding a new section
2 226-aa to read as follows:

3 § 226-aa. Installation of appliances or fixtures by tenant. 1. No
4 landlord shall restrict the installation of appliances or fixtures by a
5 residential tenant, so long as the appliances or fixtures are in compli-
6 ance with applicable building codes or other provisions of law and
7 further provided the residential tenant has sought in writing and
8 obtained written consent from the landlord for such installation. The
9 landlord shall respond in writing to a residential tenant's request for
10 such residential tenant to install appliances or fixtures within thirty
11 days of such request. Any denial of a residential tenant's request to
12 install appliances or fixtures shall include the specific reason for
13 such denial and reference the specific applicable building codes or
14 other provisions of law with which such installation is not in compli-
15 ance.

16 2. Nothing in this section shall require a landlord to alter the
17 unit's utilities for the installation of any appliances or fixtures by
18 the residential tenant.

19 3. The imposition of any surcharge for the installation or use of a
20 residential tenant-installed appliance or fixture is prohibited where
21 the residential tenant pays for the applicable utility service directly
22 to the provider.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 4. At the termination of residential tenancy, the residential tenant
2 shall be responsible for either (a) restoring the installed appliances
3 or fixtures of the unit to the condition which existed prior to the
4 installation or (b) ensuring the residential tenant-installed appliances
5 or fixtures remain in the unit at no cost to the landlord.

6 5. For the purposes of this section, "appliances or fixtures" shall
7 mean any refrigerator, freezer, range including any cooktop or oven,
8 built-in microwave oven, sink, faucet, or showerhead.

9 § 2. This act shall take effect immediately.